

TENTATIVE RULING FOR CIVSB2501626
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Lindom Properties, Inc. v. Redlands Summitt LLC, et al

Motion: Compel Further Responses to Request For Production of Documents (Set One)
 Compel Further Responses to Special Interrogatories (Set One)

Movant: Lindom Properties, Inc. (Lindom/Defendant)

Respondent: Redlands Summitt, LLC(Plaintiff/ Doe)

Meet and Confer

Code of Civil Procedure Sections 2030.300(b) and 2031.310(b) both require that motions to compel further responses to be filed with a “declaration accompanied by a meet and confer declaration under Section 2016.040”. Code of Civil Procedure Section 2016.040 currently states that “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (CCP §2016.040)

Local Rule of Court 560 MOTIONS REMOVED FROM CALENDAR states in pertinent part:

In the Court’s discretion, the Court may, on its own motion, take off calendar the following motions: 1. Motions that are not supported by a declaration establishing that an in person or telephonic meet and confer or other required meet and confer occurred or is deficient. (Local Rule 560)

On behalf of Lindom, Joe Rosenbaum, Esq. filed declarations with each motion to compel further responses that contained his “meet and confer” letter dated December 16, 2025 (Exhibits 8 and 9, Decl.). Exhibit 8 and 9 do not comply with either the Code of Civil Procedure or Local Rules as it relates to a proper meet and confer. The letter simply outlines the alleged deficiencies in the responses and demands further production by a certain date. The letter does not establish a “good faith attempt at informal resolution”.

The declaration in support of motion to compel further responses fails to establish that any type of phone call or video conference was ever attempted. Merely stating in a declaration that someone is open to a phone call, does not comply with the obligation to have a meet and confer. Although Mr. Conor E. Walsh, counsel for Redlands, made himself for conference, the declaration

fails to establish any follow-up phone calls that were ever attempted to set up the proper conference.

There were no serious and good faith attempts made to resolve the discovery issues prior to the motions being filed. The conduct herein is the exact type of conduct that the legislature is seeking to stop. It is not enough to just send a letter or an email and forget about it. The legislature and County of San Bernardino Superior Court want the attorneys to speak and not just send letters back and forth.

RULING

1. Lindom's Motion to Compel Further Responses are taken off calendar.
2. Movant to give Notice.